

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	22CV409123	Esmeralda Guzman et.al., vs Paula Arroyo, et.al.	Defendants move this court to bifurcate trial issues. Plaintiff argues that Defendants have created duties that are not supported by the law and are substantially intertwined by facts that should be determined by a trier of fact. This court agrees. Defendants' motion is DENIED.
9:00 2-4	24CV453711	Paula Byrne vs. Google, LLC, Inc.	Plaintiff moves this court to file complaint under seal. The motion is unopposed. Plaintiff's motion is GRANTED. See below for further tentative rulings.
9:00 5-6	25CV469984	Vincent Dailey bs. Taylor Morrison	Plaintiff petitions this court to compel Shea Properties to respond to Plaintiff's form interrogatories. Defendant Shea Properties is compelled to respond with verified answers. Otherwise, Form Interrogatory 12.4 is complied with. Form Interrogatories 12.7, 15.1, 16.1-16.6, and 17.1 are all objections based on privilege. Defendant is ordered to provide a privilege log. Plaintiff's motion for sanctions is DENIED. Plaintiff petitions this court to compel ICS Transit Village to respond to Plaintiff's special interrogatories. Defendant responded that interrogatories 2-18 are unintelligible. Court seeks clarification from Defendant as to lack of clarity in the interrogatories. Defendant responded to interrogatories 19-35 by objecting based on privilege. Defendant is ordered to provide a privilege log. Plaintiff's motion for sanctions are DENIED.
9:00 7	25CV472112	Fatemeh Shakiuba, et.al. vs. Tracey Clift, et.al.	Defendant moves this court to quash service of summons. Plaintiff did not file an objection. Defendant's motion is GRANTED.
9:00 8	25CV478534	Astrid Chevalier vs. Anastasio Garcia Rodriguez	Off calendar.
9:01 1	25CV457721	Geovanni Chisholm, et.al. vs. Ken Nguen, et. al.	Petitioner Akenaken Bluehorse petitions this court for a minor's compromise. Petitioner is the Guardian Ad Litem to Noelani Bluehorse, age 3, a minor. The case will be settled without a trial. Petition for approval of compromise is GRANTED.
9:01 2	25CV457721	Geovanni Chisholm, et.al. vs. Ken Nguyen, et.al.	Petitioner Myra Vanover petitions this court for a minors compromise. Petition if the Guardian ad Litem to Geovanni Chisholm, age 9, a minor. The case will be settled without a trial. Petition for approval of compromise is GRANTED.
9:01 3	25CV469349	Jungcock Joo vs. Elon Alon, et.al.	Attorney David Tran who represents Defendant Enis Tursic moves this court to allow him to withdraw from representation. There is no objection to his withdrawal. Motion to withdraw is GRANTED.

Calendar Lines 3-4

Case Name: *Paula Byrne v. Google, LLC*

Case No.: 24CV453711

Defendant Google, LLC (“Google”) demurs to the first, fourth, and eighth causes of action alleged in the third amended complaint (“TAC”) filed by Plaintiff Paula Byrne (“Byrne”). Google also moves to strike punitive damages from the TAC’s prayer for relief and paragraphs 264 and 265 from the TAC.

By way of background, the court notes that in May 2025 the court (Judge Pennypacker) sustained, with leave to amend, Google’s demurrer to the first, second, fourth, fifth, eighth, ninth, and tenth causes of action alleged in the initial complaint. (Order Sustaining In Part, Google’s Demurrer to Plaintiff’s Complaint, filed May 13, 2025.) On April 15, 2026, the court sustained Google’s demurrer to the second amended complaint’s (the “SAC”) first, fourth, and eighth causes of action with leave to amend. (Order Re Demurrer and Motion to Strike (“Prior Order”), filed April 15, 2026.)

1. First Cause of Action: Sex Discrimination

i. Disparate Treatment

California’s Fair Employment and Housing Act law (“FEHA”) prohibits discrimination on the basis of sex, which includes pregnancy, childbirth, and related medical conditions. (Gov. Code, § 12926, subd. (r)(1).) While the “specific elements of a prima facie case may vary depending on the particular facts . . . [g]enerally, the plaintiff must provide evidence” that they were a member of a protected class, they were qualified for the position sought or competently performing the position held, they suffered an adverse employment action, and some other circumstance that suggests discriminatory motive. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355 internal citations omitted.) A plaintiff may state a claim for discrimination under theories of disparate treatment or disparate impact. (*Mahler v. Judicial Council of California* (2021) 67 Cal.App.5th 82, 112 (*Mahler*).)

“Disparate treatment is *intentional* discrimination against one or more persons on prohibited grounds.” (*Rosenfeld v. Abraham Joshua Heschel Day School, Inc.* (2014) 226 Cal.App.4th 886, 893 (*Rosenfeld*), internal quotation marks and citation omitted, emphasis original.) In the Prior Order, the court sustained Google’s demurrer to the SAC’s cause of action for discrimination on the basis of sex because the SAC did not allege facts indicating a discriminatory motive. (Prior Order, p. 2:17-22.) Rather, the court noted that the SAC, like the